

18CV05728 Mark Signa et al vs The Regents of the University of CA et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-08-28

Motion: Motion: Sanctions

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Tentative Ruling: Mark Signa et al vs The Regents of the University of CA et al

Case Number

18CV05728

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 08/28/2026 - 10:00

Nature of Proceedings

Motion: Sanctions

Tentative Ruling

For the reasons set forth herein, the motion for order of contempt and sanctions for violation of the stipulated protective order is denied. No sanctions will be imposed against or in favor of any party.

Background:

This matter concerns six matters that were consolidated for pre-trial purposes on September 17, 2021. Those cases are:

Mark Signa v. The Regents of the University of California, et al. (18CV05728);

Michael Little and Tiffany Little v. The Regents of the University of California, et al. (19CV01431);

Matthew Stern v. The Regents of the University of California, et al. (19CV04418);

Jonathan Lee Reyes v. The Regents of the University of California, et al. (19CV02586);

Ryan Smith v. The Regents of the University of California, et al. (19CV01625); and

Ryan Hashimoto v. The Regents of the University of California, et al. (21CV01256).

Case No. 18CV05728 was designated as the lead case. The court ordered:

“The Court will designate the Signa case (18CV05728) as the lead case. Because the cases are not consolidated for all purposes, each of the case files need to be maintained in a complete manner for when the consolidation period ends.

In order to accomplish this, and in order to avoid confusion by the clerk’s office in processing filed documents: (a) all motions and documents shall be filed in the lead case (18CV05728) going forward, (b) all motions shall be calendared for hearing in the lead case, and (c) any filed documents shall also be separately filed in any of the other case files to which they might relate.

During the period of pre-trial consolidation, the caption of any document filed in any of the cases should reflect the caption of the lead case at the top, followed by the caption of the case(s) to which it may also correspond.” (September 17, 2021 Minute Order.)

The present motion pertains to Case No. 19CV01431.

On March 19, 2019, in Case No. 19CV01431, plaintiffs Michael Little (Michael) and Tiffany Little (Tiffany) (collectively “the Littles”) filed their complaint against defendants The Regents of the University of California (UC Regents), Dustin Olson (Olson), Cathy Farley (Farley), David Millard (Millard), Robert Romero (Romero), Gregory Pierce (Pierce), and Gregory Smorodinsky (Smorodinsky) for (1) Violation of California Whistleblower Protection Act, and (2) Violation of Labor Code section 1102.5. (Note: As plaintiffs have the same surname, they will be referred to by their first names for clarity. No disrespect is intended.)

On September 9, 2022, the parties filed a stipulation for protective order in the consolidated action that is signed by all counsel of record, including Kevin E. Gilbert of Orbach Huff + Henderson, LLP, counsel for UC Regents. (Richie decl., ¶ 2; Orozco decl., ¶ 6 & Exh. 2.) (Note: The declaration of the Little’s counsel, Darren Richie, purports to have Exhibits A through E attached. There are no attached Exhibits. As such, the court refers to the stipulated protective order attached to the Orozco declaration.)

On April 17, 2026, the Littles filed the present motion for contempt and sanctions for violation of the stipulated protective order. It was filed, improperly, in case No. 19CV01431 rather than in the lead case.

UC Regents oppose the motion.

Analysis:

Every court has to power: "To compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein." (Code Civ. Proc., § 128, subd. (a)(4).)

"Disobedience of any lawful judgment, order, or process of the court" is punishable by contempt. (Code Civ. Proc., § 1209, subd. (a)(5).)

"A judicial officer shall have the power to impose reasonable money sanctions, not to exceed fifteen hundred dollars (\$1,500), notwithstanding any other provision of law, payable to the court, for any violation of a lawful court order by a person, done without good cause or substantial justification. This power shall not apply to advocacy of counsel before the court. For the purposes of this section, the term " 'person' " includes a witness, a party, a party's attorney, or both." (Code Civ. Proc., § 177.5.)

"Contempt of a court order is a quasi-criminal proceeding due to the potential for imprisonment. [Citation.]" (Houser v. Superior Court (2025) 116 Cal.App.5th 1182, 1186.) "Any ambiguity must be resolved in favor of the person charged with contempt. [Citation.] Punishment for contempt " "can only rest upon [a] clear, intentional violation of a specific, narrowly drawn order. Specificity is an essential prerequisite of a contempt citation." " [Citation.] The power of contempt is the court's " "ultimate weapon," " to be used with great prudence. [Citation.] (Id. at pp. 1186-1187.)

The Littles argue that UC Regents violated the following paragraphs of the stipulated protective order:

Paragraph No. 7 - Access to use of protected material.

7.1 Basic Principles. A Receiving Party may use Protected Material that is disclosed or produced by another Party or by a Nonparty in connection with these Actions only for prosecuting, defending or attempting to settle these Actions. Such Protected Material may be disclosed only to the categories of persons and under the conditions described in this Order. When these Actions have been terminated, a Receiving Party must comply with the provisions governing Final Disposition. Protected Material must be stored and maintained by a Receiving Party at a location and in a secure manner that ensures that access is limited to the persons authorized under this Order.

7.2 Disclosure of " 'CONFIDENTIAL' " Information or Items. Unless otherwise ordered by the court or permitted in writing by the Designating Party, a Receiving Party may disclose any information or item designated " 'CONFIDENTIAL' " only to:

(a) The Receiving Party's Outside Counsel of Record in these Actions, as well as employees of said Outside Counsel of Record to whom it is reasonably necessary to disclose the information for these Actions;

(b) The officers, directors, and employees (including House Counsel) of the Receiving Party to whom disclosure is reasonably necessary for these Actions;

(c) Experts of the Receiving Party to whom disclosure is reasonably necessary for these Actions and who have signed the " 'Acknowledgment and Agreement to Be Bound' " (Exhibit A);

(d) The Court and its personnel;

(e) Court reporters and their staff;

(f) Professional jury or trial consultants, mock jurors, and Professional Vendors to whom disclosure is reasonably necessary for this Action and who have signed the " 'Acknowledgment and Agreement to Be Bound' " (Attachment A);

(g) The author or recipient of a document containing the information or a custodian or other person who otherwise possessed or knew the information;

(h) During their depositions, witnesses, and attorneys for witnesses, in the Action to whom disclosure is reasonably necessary provided: (1) the deposing party requests that the witness sign the " 'Acknowledgment and Agreement to Be Bound' " (Exhibit A); and (2) they will not be permitted to keep any confidential information unless they sign the " 'Acknowledgment and Agreement to Be Bound,' " unless otherwise agreed by the Designating Party or ordered by the Court. Pages of transcribed deposition testimony or exhibits to depositions that reveal Protected Material may be separately bound by the court reporter and may not be disclosed to anyone except as permitted under this Stipulated Protective Order; and

(i) Any mediator or settlement officer, and their supporting personnel, mutually agreed upon by any of the parties engaged in settlement discussions and who have signed the " 'Acknowledgment and Agreement to Be Bound' " (Exhibit A).

7.3 Counsel making the disclosure to any qualified person described herein shall retain the original executed copy of the Nondisclosure Agreement until sixty (60) days after this litigation has become final, including any appellate review, and monitoring of an injunction. Counsel for the Receiving Party shall maintain all signed Nondisclosure Agreements and shall produce the original signature page upon reasonable written notice from opposing counsel. If an issue arises regarding a purported unauthorized disclosure of Confidential Information, upon noticed motion of contempt filed by the Designating Party, counsel for the Receiving Party may be required to file the signed Nondisclosure Agreements, as well as a list of the disclosed materials, in camera with the Court having jurisdiction of the Stipulation."

Paragraph No. 8 - Protected material subpoenaed or ordered produced in other litigation.

"If a Party is served with a subpoena or a court order issued in other litigation that compels disclosure of any information or items designated in these Actions as " 'CONFIDENTIAL,' " that Party must:

a. Promptly notify in writing the Designating Party. Such notification shall include a copy of the subpoena or court order;

b. Promptly notify in writing the party who caused the subpoena or order to issue in the other litigation that some or all of the material covered by the subpoena or order is subject to this Stipulated Protective Order. Such notification shall include a copy of this Stipulated Protective Order; and

c. Cooperate with respect to all reasonable procedures sought to be pursued by the Designating Party whose Protected Material may be affected. If the Designating Party timely seeks a protective order, the Party served with the subpoena or court order shall not produce any information designated in this action as " 'CONFIDENTIAL' " before a determination by the court from which the subpoena or order issued, unless the Party has obtained the Designating Party's permission. The Designating Party shall bear the burden and expense of seeking protection in that court of its confidential material and nothing in these provisions should be construed as authorizing or encouraging a Receiving Party in these Actions to disobey a lawful directive from another court."

Paragraph No. 10 - Unauthorized disclosure of protected material.

"If a Receiving Party learns that, by inadvertence or otherwise, it has disclosed Protected Material to any person or in any circumstance not authorized under this Stipulated Protective Order, the Receiving Party must immediately (a) notify in writing the Designating Party of the unauthorized disclosures, (b) use its best efforts to retrieve all unauthorized copies of the Protected Material, (c) inform the person or persons to whom unauthorized disclosures were made of all the terms of this Stipulated Protective Order, and (d) request such person or persons to execute the " 'Acknowledgment and Agreement to Be Bound' " (Exhibit A)."

Paragraph No. 18 - Violation.

"Any violation of this Stipulated Protective Order may be punished by any and all appropriate measures including, without limitation, contempt proceedings and/or monetary sanctions."

Importantly, paragraph 2.15 defines "Protected Material" as: "Any Disclosure or Discovery Material that is designated as " 'CONFIDENTIAL.' " (The term " 'Confidential Document' " shall be synonymous with the term " 'Protected Material' " for the purposes of this Stipulation and any associated Protective Order.)"

The Littles do not dispute that none of the documents at issue were designated as "confidential."

The Littles argue that UC Regents, through its outside counsel of record Orbach Huff + Henderson, LLP (OHH), issued a subpoena for the production of business records to Michael's employer Northrop Grumman Innovation Systems, LLC (Northrop), on June 10, 2025, in this action, seeking six years of Michael's detailed employment, compensation, W-2s, payroll, personnel, and benefits records. After obtaining the records, OHH disclosed them to counsel for UC Regents in a separate administrative proceeding for the purpose of offsetting Michael's back pay award. Administrative counsel that received the records is not counsel of record in this action and is not among those authorized recipients of protected materials under the protective order.

UC Regents does not deny that it subpoenaed the employment records or that it disclosed them to counsel in the administrative proceeding. Rather, UC Regents argues that the records were not, and are not, protected materials under the protective order because the Littles did not designate them as confidential and allowed the production to occur without objection. The court agrees.

As noted above, the subject records were subpoenaed on June 10, 2025. (Orozco decl., ¶ 9 & Exh. 4.)

The subpoena was served, via email, on plaintiff's counsel at darren@dre.law. (Orozco decl., ¶ 10 & Exh. 5.) In response to the electronic service of the subpoena, UC Regents' counsel received an auto-reply message from plaintiffs' counsel stating that the email had been delivered but that plaintiffs' counsel was out of the office and would return on June 25, 2025. (Orozco decl., ¶ 11 & Exh. 6.)

By way of declaration, plaintiffs' counsel denies receiving the subpoena because, among other reasons, his correct email address is darren@drelaw.com. (Richie decl., ¶ 6.) The declaration is clearly a misrepresentation. The motion itself, as well as other filings and correspondence to defense counsel, lists the correct email address as darren@dre.law. By way of reply, plaintiffs' counsel fails to explain or correct his misrepresentation. The subpoena was served and plaintiffs' counsel failed to act on it. Plaintiffs' counsel, like all California attorneys, has an affirmative obligation to not only refrain from making false representations to the court, but also to affirmatively correct any misrepresentation. (Bus. & Prof. Code § 6068; Rules Prof. Conduct, rule 3.3; Levine v. Berschneider (2020) 56 Cal.App.5th 916, 921.) The court will decline to issue an order to show cause as to why plaintiffs' counsel should not be sanctioned, at this time, but counsel is reminded of their strict ethical obligations as an officer of the court.

Plaintiffs attempt to place blame on counsel for UC Regents for their own failure to act and to impose duties on counsel for UC Regents that do not exist. It was incumbent upon plaintiffs' counsel to ensure that the documents were properly designated as "confidential." They simply failed to do so for nearly a year. Because they failed to do so, the documents were never subject to the protective order.

Because there is no evidence that UC Regents or their counsel violated any provision of the protective order, the motion will be denied.

Judges

Judge Donna D. Geck

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